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I. Executive Summary

Determination as to the availability of water under long-term service contracts for municipal and industrial (M&I) uses from Navajo Reservoir involves a projection into the future of estimated water uses and water supplies. On the basis of this hydrologic investigation, water depletions for the Upper Basin of the Colorado River can be reasonably allowed to rise to 6 million acre-feet (MAF) annually. This determination certifies the availability of 94,500 acre-feet of water annually for marketing from Navajo Reservoir. Of this amount, 3,000 acre-feet annually has been reserved for use in perpetuity by the Jicarilla Apache Tribe, 69,000 acre-feet per year, previously identified by the 1984 hydrologic investigation, is available for marketing through the year 2039, and an additional 22,500 acre-feet per year is available for marketing from Navajo Reservoir in perpetuity. This depletion level can be achieved under the same shortage criteria upon which the allowable annual depletion level of 5.8 MAF was determined in the 1984 hydrologic investigation, without significant increase in the level of risk.

To avoid a critical compact interpretation, we assume that the Upper Basin will be obligated to deliver 75 MAF of water every 10 years at Lee Ferry, plus 750,000 acre-feet annually toward Mexican Treaty deliveries. This would require an average annual water delivery at Lee Ferry of at least 8.25 MAF. It must be noted here that the Upper Colorado River Commission, comprised of representatives of the Upper Basin States, does not agree with delivery of the 750,000 acre-feet annually toward the Mexican Treaty obligation.

The change in maximum depletion levels for the Upper Basin States under the previously mentioned assumptions, and as a result of this investigation is as follows:

<u>State</u>	<u>Depletion Levels (Acre-feet/year)</u>	
	<u>1984 Investigation</u>	<u>1988 Investigation</u>
Arizona	50,000	50,000
Colorado	2,976,000	3,079,500
New Mexico	647,000	669,500
Utah	1,322,000	1,368,000
Wyoming	805,000	833,000

VI. Determination

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Recognizing the status of water use in the Upper Colorado River Basin, the physical availability, and institutional constraints, it is determined through hydrologic investigation that sufficient water is reasonably likely to be available under the provision of Section 11(a) of Public Law 87-483, to fulfill contracts that involve additional Navajo Reservoir water depletions up to 94,500 acre-feet annually. Of this amount, 3,000 acre-feet annually has been reserved for use in perpetuity by the Jicarilla Apache Tribe, 69,000 acre-feet annually is available for marketing through the year 2039, and an additional 22,500 acre-feet of water annually is reasonably likely to be available for depletion from Navajo Reservoir in perpetuity.

Extensive hydrologic data analyses, present Colorado River Storage Project operating policies, and required and projected Upper Basin water deliveries, support the Upper Basin depletion limit of 6.0 MAF. This 6.0 MAF yield from the Upper Colorado River Basin is recognized by the Bureau and the Department as an estimate which takes into account risk and shortage criteria as well as providing for the minimum operational release of 8.23 MAF at Lees Ferry. The 6.0 MAF figure is an estimate to be used for planning purposes only and is not intended to be an interpretation of the Upper Basin entitlement according to the provisions of the Colorado River Compacts and other law of the river.

Therefore, we conclude that the projection of water uses now envisioned in the Upper Basin by year 2040 can reach a 6.0 MAF depletion level without impairment of the Upper Basin's ability to meet its water delivery obligation to the Lower Basin and the Republic of Mexico.